

HOUSE BILL 2399

By Glynn

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7; Title 8; Title 53, Chapter 8;
Title 58, Chapter 2; Title 62, Chapter 7 and Title
67, Chapter 4, Part 14, relative to emergencies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 58, Chapter 2, Part 1, is amended by adding the following as a new section:

58-2-112.

(a) There is created a voluntary community storm emergency relief program, hereinafter known as the "program," to be administered by the department of tourist development in collaboration with the department of agriculture. A hotel, as defined by § 67-4-1401, or a food service establishment, as defined in § 53-8-103, may opt-in to the program by providing notice to the department of tourist development.

(b) The program must authorize, during a declared state or local emergency due to a severe weather event:

(1) A hotel to charge a lower, pre-determined emergency rate to local residents in need of shelter;

(2) A hotel to offer flexible cancellation, early checkout options, and prorated refunds if circumstances improve, allowing the local resident to return home earlier than expected; and

(3) Food service establishments, including food trucks, to remain open and operate in neighborhoods affected by the emergency.

(c) Hotel and food service establishment participation in the program is voluntary and is subject to the business judgment of the operator, room and food availability, as applicable, and safety considerations.

(d) The department of tourist development, through its marketing division may:

(1) Promote hotels and food establishments participating in the program through public recognition, promotional support, limited financial assistance within the resources of the department, or other appropriate means;

(2) Maintain on its website a list of hotels and food service establishments participating in the program; and

(3) Create an online platform through which a hotel or food service establishment may choose to participate in the program.

(e) This section does not:

(1) Mandate participation or cooperation by a hotel or food service establishment operator, a local government, or a department or agency of this state; or

(2) Create a private right of action, penalty, or enforcement obligation against this state, a local government, or a hotel or food service establishment operator.

SECTION 2. Tennessee Code Annotated, Title 53, Chapter 8, Part 1, is amended by adding the following as a new section:

(a) The commissioner may authorize food service establishments to participate in the program created under § 58-2-112. As part of a food service establishment's participation, the commissioner may:

(1) Issue temporary permits or waive restrictions necessary to facilitate food service establishment participation in the program. Local governments may,

and are encouraged to, issue temporary permits or waive restrictions necessary to facilitate a food service establishment's participation in the program if the establishment has been identified as a participant by the commissioner; and

(2) Allow state or local agencies to coordinate with participating food service establishments to provide meals in areas without power or other utility services or access to grocery services.

(b) A food service establishment participating in the program is authorized and encouraged to adopt flexible, community-focused practices during a declared state or local emergency.

(c) The commissioner may provide informal guidance on flexible, community-focused practices and publish the guidance on the department's website.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.